

TENTATIVE RULING:

Plaintiff has filed a Motion requesting the court to permit alternative service of process on the Defendant, Anil Yadav.

Plaintiff contends that Defendant Yadav's last known residential address is 3579 Little Valley Rd, Sunol, and that , through a process server, Plaintiff attempted service 4 separate times.

Plaintiff writes that they confirmed Defendant's address through public records, yet offers no more detail about the records they used, or what information these records provided.

Plaintiff attaches exhibits to their Motion reflecting the address of Yadav Enterprises on the website of the California Secretary of State; purported LinkedIn pages of Defendant Yadav; a diligence report from the server; and emails exchanges with counsel for Yadav Enterprises, the other defendant. However, none of these documents reflect that the Sunol address is indeed that of Defendant Yadav.

Section 413.30 of the CCP permits a court to allow for alternate service after a showing of reasonable diligence. But it is unclear to the court why Plaintiff believes Defendant Yada resides at the Sunol address. It is not apparent that Plaintiff has in fact exercises reasonable diligence.

This court already rejected the same request by Plaintiff, submitted through the efile queue, and the Plaintiff has provided no new information.

Disposition

This Motion is denied without prejudice.

Plaintiff is directed to file any subsequent requests in the efile queue.

12. 9:00 AM CASE NUMBER: L25-13162
CASE NAME: BANK OF AMERICA, N.A. VS. GABRIELLE WORLEY
TO VACATE JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant filed a Motion, on 3/4/26, to vacate a default judgment that was filed on 3/3/26. The Motion was originally scheduled to be heard on 5/19/26, but the court continued the matter to 8/11/26, because the moving papers weren't provided in a timely manner. The court provided both parties mail notice of the 8/11/26, hearing.

Plaintiff filed a Response on 5/8/26.

Background

Defendant's argument is unclear. The caption of the Motion indicates that she's requested the court to vacate the default judgment against her. Yet, the body of the Motion argues for the court to modify the judgment to allow for installments, under Section 582.5 of the CCP. But, then, the declaration, at the end of the Motion, again asks the court to vacate the default judgment.

No reason is offered for vacating the judgment other than Defendant's desire to pay the judgment in installments.

Analysis

Section 582.5 of the CCP says nothing about the court's ability to set aside default judgments. Even assuming it did, *arguendo*, Defendant's prior appearance is a prerequisite.

This statute clearly does not apply.

There is no basis for Defendant's request.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve copy of filed Order on Defendant.

**13. 9:00 AM CASE NUMBER: MSL21-03519
CASE NAME: JPMORGAN CHASE BANK, N.A VS. MADELINE ALVARADOSWEENEY
MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO
STIPULATION FILED BY PLTF ON 04/17/2026
FILED BY: JPMORGAN CHASE BANK, N.A**

TENTATIVE RULING:

Plaintiff filed a Motion to set aside notice of settlement and enter judgment pursuant to a written agreement. The Motion was served by mail on counsel for Defendant.

The Motion is unopposed.

Background

Plaintiff filed, on 9/21/22, notice of conditional settlement, reflecting that the case that the parties would file a request for dismissal no later than 10/20/25.

That event never occurred.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$15,448.60, less any credits for payments received.

Defendant defaulted on that agreement.